



## Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 16 judgments on Tuesday 4 February 2020 and 63 judgments and / or decisions on Thursday 6 February 2020.

*Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site ([www.echr.coe.int](http://www.echr.coe.int))*

### Tuesday 4 February 2020

#### [Bastys v. Lithuania \(application no. 80749/17\)](#)

The case concerns the authorities' refusal to issue a member of parliament with security clearance.

The applicant, Mindaugas Bastys, is a Lithuanian national who was born in 1965 and lives in Vilnius.

In October 2016, Mr Bastys was re-elected as a member of the Seimas (the Lithuanian parliament) and appointed as Deputy Speaker a month later. As part of the standard procedure, the Speaker asked the State Security Department (SSD) to assess whether or not he could be granted security clearance, which would allow him access to top secret information. Following a questionnaire and two interviews to which he had agreed, the SSD issued a note opposing his security clearance as it had reasons to doubt his trustworthiness. In particular, he apparently maintained relationships with several individuals who had links to Russia and whose activities were considered contrary to national security interests.

On 9 March 2017, the Speaker informed Mr Bastys orally that he would not be issued with security clearance and asked him to resign as Deputy Speaker, which he did. A few days later, he asked the SSD to provide him with the information used to justify its note in order to be able to contest the note in court. The SSD refused, stating that part of the information in the note was classified. It also stated that the note, as an interim document, could not be contested before a court. The Speaker also refused to provide a copy of his decision not to issue the applicant with security clearance.

Mr Bastys subsequently lodged complaints against the Seimas and the SSD before the Vilnius Regional Administrative Court and the Supreme Administrative Court. He primarily alleged that the conclusions in the SSD note were unfounded and that the Speaker had not adopted a written decision on the refusal for security clearance. Both jurisdictions ruled that the SSD note was an interim document without any legal consequences and could not therefore be contested in court. The Supreme Administrative Court also found that the Speaker's decision did not fall within the scope of public administration and could not be examined by the administrative courts.

In March 2018 Mr Bastys resigned as a member of the Seimas.

Relying on Article 13 (right to an effective remedy) taken in conjunction with Article 8 (right to respect for private and family life) of the European Convention on Human Rights, Mr Bastys complains that he was not able to defend himself against the allegations in the SSD note.

#### [Alexandru-Marian Iancu v. Romania \(no. 60858/15\)](#)

The applicant, Alexandru-Marian Iancu, is a Romanian national born in 1965 who is currently detained in Rahova Prison (Romania) after his conviction of various financial crimes in 2014 and 2015.

The case concerns his allegation that the proceedings against him were not fair because a judge who decided his case was not impartial.

Mr Iancu had two sets of criminal proceedings brought against him concerning financial crimes he had allegedly committed between 2000 and 2003 in his capacity as manager or director of several private commercial companies. The case file from the first set of proceedings was joined to that of the second set as certain evidence was common to both.

He was convicted in both sets of proceedings by a panel of two judges. One of the judges, M.A.M., appeared on both panels.

During the appeal proceedings in the second case against Mr Iancu, Judge M.A.M. sought to withdraw in order to eliminate any suspicion concerning his possible lack of impartiality. His request was rejected by a panel of two judges who found that the mere fact that he had taken part in the previous case could not raise a reasonable suspicion as to his impartiality and that there was no proof to show that, in the first case, he had expressed an opinion on the guilt of the accused who were currently on trial. Further challenges for bias were made against Judge M.A.M., but they were also rejected.

Complaints concerning Judge M.A.M.'s alleged lack of impartiality were also examined and rejected by the High Court of Cassation and Justice and the Superior Council of Magistracy. They found in particular that all the requests for recusal and the final judgment of 2015 convicting Mr Iancu had been thoroughly reasoned.

Relying in particular on Article 6 § 1 (right to a fair trial/hearing ) of the European Convention, Mr Iancu alleges that Judge M.A.M. could not be impartial as he had been involved in convicting him in two sets of proceedings which were connected.

#### [Baysultanov v. Russia \(no. 56120/13\)](#)

The applicant, Gasan Baysultanov, is a Russian national who was born in 1981 and lives in Khasavyurt (the Republic of Dagestan, Russia).

The case concerns the killing of the applicant's wife in a police raid on their home.

In November 2006 law-enforcement authorities in the Russian republic of Dagestan planned an operation to seize a military leader of an illegal armed group, a former colleague of the applicant's who was believed to be hiding at his home in Khasavyurt. The raid was carried out by district and town police as well as officers from the Russian Ministry of the Interior in Dagestan.

As the operation got underway the police opened fire on the applicant and his wife, Saniyat Magomedova, and a grenade also exploded. Ms Magomedova was killed and the applicant was injured. In March 2007 he was acquitted of membership of an illegal armed group and of attacking police officers but was given a sentence of 18 months in a correctional colony for unlawful possession of firearms after a Kalashnikov was found in the courtyard, which had allegedly belonged to him. The court found in particular that four police officers had given false statements about the applicant and his wife opening fire first. The applicant denied owning a Kalashnikov.

The applicant complained to the authorities about the incident, saying the police had used lethal force when it had not been necessary. In June 2009 a criminal case was opened but the investigation was closed and resumed several times. It was finally closed in September 2013 as investigators found that the applicant or his wife had fired first on the police with the Kalashnikov and the police had then returned fire. They also gave explanations for why the police had not found any spent Kalashnikov cartridges or gunshot residue on the applicant or his wife.

Relying on Article 2 (right to life), the applicant complains that the police used disproportionate lethal force, leading to his wife being killed and himself being injured. He also complains that the investigation into the incident was inadequate.

### Kruglov and Others v. Russia (no. 11264/04 and 15 other applications)

The applicants are 25 Russian nationals who were born between 1953 and 1985 and live in Samara, Yekaterinburg, St Petersburg, Cheboksary, Nizhniy Novgorod, Moscow, Novosibirsk, Markovo, Khabarovsk, Vladivostok, Orsk, Tomsk, Orenburg and Krasnodar (all in Russia)

The case concerns police searches of the homes and offices of the applicants, who are practising lawyers or their clients.

The searches in the 16 applications were carried out on various dates between 2003 and 2016. All but two of the searches were based on court warrants. In some of the searches the investigating authorities seized items such as computers, hard drives or documents.

The applicants complain that the searches of their homes or offices and the seizure of electronic devices containing personal information or documents covered by professional legal privilege violated Article 8 (right to respect for private and family life, the home, and correspondence). They also raise a complaint under Article 13 (right to an effective remedy) taken together with Article 8.

Relying on Article 1 of Protocol No. 1 (protection of property), the applicants in six applications complain about the seizure and continued retention of their data-storage devices. They also complain about a lack of a remedy for that complaint, relying on Article 13 with Article 1 of Protocol No. 1.

### Bayram v. Turkey (no. 7087/12)

The applicant, Mr Fikret Bayram, is a Turkish national who was born in 1972 and lives in Batman (Turkey).

The applicant is paraplegic and the case concerns his conditions of detention.

Between 1990 and 1992 Mr Bayram participated in a number of terrorist acts, including three homicides, in the name of the illegal organisation Hezbollah. During one of those acts he was wounded by a shot fired by one of his victims and became paraplegic.

In 1995 he was found guilty and was sentenced to 26 years' imprisonment, before receiving a presidential pardon. In 2000, after discovering that he had taken part in other acts, the authorities placed him in custody on remand once again, then released him in 2004 during the proceedings. In 2006 he was given a life sentence.

Scores of medical reports were drawn up between 2007 and 2009, then in 2011 and 2013. The first reports showed that he was suffering from a permanent disability, that he was obliged to use a wheelchair and that his degree of physical incapacity was 92%. The more recent reports showed that he had kidney and obesity-related disorders and that he was suffering from depression.

Following his conviction in 2006, and in spite of his medical condition, Mr Bayram was imprisoned in Batman Prison in 2009, where he lived with several other prisoners in a living area spread over more than one floor. His brother, who was one of the inmates, looked after him until his own release. His care was then allocated to two other inmates in return for payment. They assisted him by carrying him up and down the stairs and helping him with his personal hygiene needs, as he was completely dependent as regards everyday activities on account of his disability. In 2012 Mr Bayram was transferred at his request to Diyarbakir Prison, where the living areas were on one floor only and there was a lift, with two wheelchairs available. A fellow inmate was appointed as his carer.

On 14 June 2013 the public prosecutor of Diyarbakir decided to order a stay of execution of the applicant's sentence in view of his state of health. He was released on the same day.

Relying on Article 3 (prohibition of inhuman or degrading treatment), the applicant complains that he had to spend years in prison in spite of his serious disability.

## Revision

[Süleyman Çelebi and Others v. Turkey \(nos. 22729/08 and 10581/09\)](#)

The case concerns clashes between the security forces and demonstrators on 1 May 2007 during a demonstration on Taksim Square in Istanbul.

The applicants are, first, a trade union (the Confederation of Trade Unions of Revolutionary Workers, “the DISK”) and, secondly, eight Turkish nationals, including Süleyman Çelebi (Chairman of the DISK).

Relying in particular on Article 11 (freedom of assembly and association), the applicants complained about the security forces’ intervention.

In a judgment of 12 December 2017 the Court found there had been a violation of Article 11 on account of the dispersion of the demonstration. It also decided to award Süleyman Çelebi, Musa Çam, Adnan Serdaroğlu, Kamer Aktaş, Celal Ovat, Ali Rıza Küçükosman, Gençay Gürsoy, Arzu Çerkezoğlu and the “DISK” trade union EUR 7,500 each in respect of non-pecuniary damage.

By a letter received by the Registry on 19 December 2018, the applicants’ representative informed the Court that Mr Aktaş had died on 3 February 2009 and he thus requested a revision of the judgment.

Thursday 6 February 2020

[Sakvarelidze v. Georgia \(no. 40394/10\)](#)

The applicant, Mariam Sakvarelidze, is a Georgian national who was born in 1949 and lives in Tbilisi.

The case concerns the death of her son and sister in 2003 when an armoured military vehicle (AMV) hit their car.

The applicant and members of her family were driving along a street in Tbilisi in November 2003, at a time of widespread protests known as the Rose Revolution, when their car was hit by an armoured military vehicle driven by either a law-enforcement or military officer. The applicant’s son and her sister were killed, while the applicant and her nephews were injured.

The Ministry of Defence, the Interior Ministry and the Tbilisi City Public Prosecutor’s Office investigated the case in turn over the following years and it was closed and resumed several times.

In 2010 the Prosecutor’s Office informed her that despite investigatory measures it had been impossible to establish with certainty what had happened during the accident. The Prosecutor’s Office closed the case definitively in March 2017 owing to the expiry of the statute of limitation. The applicant repeatedly enquired about the course of the various investigations, appealed against decisions to close it and made complaints that it was ineffective.

Relying in essence on Article 2 (right to life), Ms Sakvarelidze complains that the Georgian State was responsible for the traffic accident which killed her son and sister and that the subsequent criminal investigation was ineffective.

[Felloni v. Italy \(no. 44221/14\)](#)

The applicant, Riccardo Felloni, is an Italian national who was born in 1978 and lives in Ferrare (Italy).

The case concerns criminal proceedings which led to Mr Felloni’s conviction for driving under the influence of alcohol.

Relying on Article 6 (right to a fair trial) and Article 7 (no punishment without law), Mr Felloni submits that he was sentenced under a harsher criminal law applied retroactively to his case. In particular, he complains that he did not benefit from the mitigating circumstances set out in the law

in force at the material time, as subsequently amended under another law. He also alleges that the Court of Cassation failed in its duty to give reasons for its decisions.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

## Tuesday 4 February 2020

| Name                                | Main application number |
|-------------------------------------|-------------------------|
| Truchanovič and Others v. Lithuania | 15708/10                |
| Furtună v. the Republic of Moldova  | 54104/07                |
| Botov and Others v. Russia          | 22463/07                |
| Ishevskiy and Others v. Russia      | 39619/09                |
| Nigmatullin and Others v. Russia    | 47821/09                |
| Shibayeva v. Russia                 | 13813/06                |
| Ugurchiyev and Others v. Russia     | 33731/14                |
| Abay v. Turkey                      | 47455/10                |
| Alaloğlu and Others v. Turkey       | 42019/06                |
| Özgüç v. Turkey                     | 3094/09                 |

## Thursday 6 February 2020

| Name                                 | Main application number |
|--------------------------------------|-------------------------|
| Gevorgyan and Others v. Armenia      | 66535/10                |
| Safaryan v. Armenia                  | 16346/10                |
| Aliyev v. Azerbaijan                 | 7477/15                 |
| Damirov v. Azerbaijan                | 44083/09                |
| Ismayilov v. Azerbaijan              | 11258/12                |
| Ramazanov v. Azerbaijan              | 53596/15                |
| Fazlagić v. Bosnia and Herzegovina   | 77431/17                |
| Hukić v. Bosnia and Herzegovina      | 677/18                  |
| Filipova v. Bulgaria                 | 46475/12                |
| X and Y v. Bulgaria                  | 23763/18                |
| Sagadi and Others v. Estonia         | 51278/17                |
| Carrefour Hypermarchés Sas v. France | 21488/14                |
| H.A. and Others v. France            | 30981/19                |
| Evangelopoulos and Others v. Greece  | 38738/17                |
| Karapanos and Others v. Greece       | 61204/15                |
| Kordelas v. Greece                   | 52482/13                |
| Staboulos and Others v. Greece       | 72209/17                |
| Bolyós-Csabai and Others v. Hungary  | 20501/15                |
| Kertész v. Hungary                   | 65532/16                |
| Süveges v. Hungary (no. 2)           | 20714/19                |
| Coviello and Carpi v. Italy          | 42852/09                |
| Di Pietro v. Italy                   | 40556/09                |

| Name                                            | Main application number |
|-------------------------------------------------|-------------------------|
| Guardata and Others v. Italy                    | 17154/08                |
| Marconi v. Italy                                | 58047/08                |
| Tedeschi v. Italy                               | 44484/10                |
| Ungaro and Others v. Italy                      | 26719/07                |
| Varanini and De Salvatore v. Italy              | 2555/08                 |
| Auto-Casa-Tur S.R.L. v. the Republic of Moldova | 58107/15                |
| Bisello S.R.L. v. the Republic of Moldova       | 67988/13                |
| Martins Barreiros v. Portugal                   | 61311/16                |
| Alexe v. Romania                                | 43414/15                |
| Ferencz v. Romania                              | 1278/16                 |
| Iamandi and Others v. Romania                   | 36675/16                |
| Iordan v. Romania                               | 46738/16                |
| Moraru v. Romania                               | 46521/15                |
| Arutyunyan v. Russia                            | 80190/12                |
| S.L. and C.C. v. Russia                         | 19115/19                |
| Tsakhigov v. Russia                             | 21511/07                |
| Adıyaman v. Turkey                              | 65174/11                |
| Altinel v. Turkey                               | 15048/11                |
| Çavuş v. Turkey                                 | 53009/09                |
| Efe v. Turkey                                   | 23115/17                |
| Gümrükçüoğlu v. Turkey                          | 27612/07                |
| Güngü and Others v. Turkey                      | 8019/12                 |
| Kireçtepe and Others v. Turkey                  | 59194/10                |
| Koçhan v. Turkey                                | 59249/10                |
| Lastik-İş v. Turkey                             | 51188/17                |
| Özaydın v. Turkey                               | 41815/17                |
| Sertdemir v. Turkey                             | 42914/09                |
| Turgut v. Turkey                                | 41383/09                |
| Yıldız v. Turkey                                | 59241/10                |
| Yıldız v. Turkey                                | 67732/12                |
| Bandurka v. Ukraine                             | 5701/11                 |
| Denysenko v. Ukraine                            | 5820/11                 |
| Gerasin v. Ukraine                              | 49614/18                |
| Korolev v. Ukraine                              | 53583/13                |
| Lunev v. Ukraine                                | 20250/18                |
| Meshteshug v. Ukraine                           | 52826/18                |
| Oliyevskyy v. Ukraine                           | 65117/11                |
| Yelnik v. Ukraine                               | 10444/13                |
| Zakutniy v. Ukraine                             | 17843/19                |

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**The European Court of Human Rights** was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.